

HOUSE No. 2677

The Commonwealth of Massachusetts

PRESENTED BY:

Francisco E. Paulino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the establishment of minority recruitment and selection program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Francisco E. Paulino</i>	<i>16th Essex</i>	<i>1/8/2025</i>

HOUSE No. 2677

By Representative Paulino of Methuen, a petition (accompanied by bill, House, No. 2677) of Francisco E. Paulino that law enforcement agencies establish minority recruitment and selection programs. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3636 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the establishment of minority recruitment and selection program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 12 of the General Laws is hereby amended by adding the following
2 3 sections:-

3 Section 36. (a) As used in this section and in sections 37 to 38, the following words shall,
4 unless the context clearly requires otherwise, have the following meanings:

5 “Law enforcement agency”, (i) a state, county, municipal or district law enforcement
6 agency, including, but not limited to: a city, town or district police department, the office of
7 environmental law enforcement, the University of Massachusetts police department, the
8 department of the state police, the Massachusetts Port Authority police department, also known
9 as the Port of Boston Authority police department, and the Massachusetts Bay Transportation

Authority police department; (ii) a sheriff's department in its performance of police duties and functions; (iii) a public or private college, university or other educational institution or hospital police department; or (iv) a humane society police department in section 57 of chapter 22C.

"Law enforcement officer", any person who is employed as a permanent full-time member of a law enforcement agency and is required to be certified by the Massachusetts peace officer standards and training commission pursuant to chapter 6E.

(b) Each law enforcement agency shall establish a minority recruitment and selection program in accordance with guidelines established by the attorney general pursuant to section 38. The program shall seek to remedy past discrimination in furtherance of the goal of the agency being comprised of law enforcement officers who reflect the diversity of the population of the community the agency is charged with protecting. In implementing the program, the law enforcement agency shall make a good faith effort to meet specific goals for recruiting and hiring minorities and females within established time frames. The program shall include methods of evaluating whether these goals are met and provide for additional contingent measures to be taken if the program fails to meet its specific goals.

(c) The minority recruitment and selection program established pursuant to subsection (b) shall be posted on the official website of each law enforcement agency.

(d) The attorney general shall monitor the results of the minority recruitment and selection programs established by each law enforcement agency pursuant to subsection (b). In monitoring the results of the minority recruitment and selection program established by a state law enforcement agency, the attorney general shall do so in consultation with the head of the respective state law enforcement agency.

(e) The attorney general shall annually publish a report summarizing the results obtained pursuant to subsection (d). The attorney general shall post this summary on the official website of the attorney general and shall submit the report to: (i) the governor; (ii) the secretary of public safety and security, who shall post the report on the official website of the executive office of public safety and security; and (iii) the clerks of the house of representatives and the senate.

Section 37. (a) Each law enforcement agency shall annually submit to the attorney general a report containing:

(i) the age, gender, race, and ethnicity of the law enforcement officers currently appointed to the law enforcement agency;

(ii) the age, gender, race, and ethnicity of applicants for a law enforcement officer position in the preceding calendar year;

(iii) the age, gender, race, and ethnicity of applicants appointed to the agency in the preceding calendar year;

(iv) the reasons for denying applicants an appointment to the law enforcement agency; and

(v) the age, gender, race, and ethnicity of each law enforcement officer promoted within the agency in the preceding calendar year, including the position to which the officer was promoted.

(b) Each law enforcement agency shall publish on its official website the information required by subsection (a).

(c) The attorney general shall collect, gather, assemble, and collate the information reported pursuant to subsection (a) into an annual report to be submitted to: (i) the governor; (ii) the secretary of public safety and security, who shall post the report on the official website of the executive office of public safety and security; and (iii) the clerks of the house of representatives and the senate. The Attorney General shall also post the annual report on the attorney general's official website.

Section 38. The attorney general shall develop for dissemination to all law enforcement agencies those guidelines or directives deemed necessary or appropriate to ensure the uniform application of this act.

SECTION 2. This act shall take effect 120 days after its passage.